Harsh Khanna vs Serious Fraud Investigation Office on 26 August, 2022

$~26 to 29

* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ W.P.(CRL) 1923/2022

HARSH KHANNA ..... Petit

Through: Mr Bhagabati Prasad
Advocate

versus

SERIOUS FRAUD INVESTIGATION OFFICE ..... Respondent

Through: Mr Amit Tiwari, Counsel for SFIO
Mr Vishal Shrivastava, Advocate
SFIO

\+ W.P.(CRL) 1934/2022

JAGDISH PAMPANNA KORE ..... Petiti

Through: Mr Bhagabati Prasad
Advocate

versus

SERIOUS FRAUD INVESTIGATION OFFICE ..... Respon

Through: Ms Nidhi Raman, CGSC with Mr
Zubin Singh and Ms Aneysha Nar
Advocate for SFIO
Mr Arib ansari, Company Prosec
SFIO and Mr Tarun Srivastava,
Advocate for SFIO

\+ W.P.(CRL) 1936/2022

RAKESH K MEHTA ..... Petit

Through: Mr Bhagabati Prasad
Advocate

versus

SERIOUS FRAUD INVESTIGATION OFFICE ..... Respon

Signature Not Verified
Digitally Signed
By:GEETA JOSHI
Signing Date:03.09.2022
20:20:40

Through: Mr Ajay Digpaul,
Mr Kamal Digpaul,
Kwatra and Mr Ram
Advocates.

\+ W.P.(CRL) 1938/2022

PUNEET BANSAL .....

Through: Mr Bhagabati Prasa

Advocate

versus

SERIOUS FRAUD INVESTIGATION OFFICE ..... Responden
Through: Ms Shiva Lakshmi, CGSC with Ms
Srishti Rawat, Ms Ritwik Sneha an
Mr Sri RamTiwari, Advocates
CORAM:
HON'BLE MS. JUSTICE POONAM A. BAMBA
ORDER

% 26.08.2022 CRL.M.A. 16739/2022 in W.P.(CRL) 1923/2022 (Exemption from filing certified copies of Annexures/documents) CRL.M.A. 16803/2022 in W.P.(CRL) 1934/2022 (Exemption from filing certified copies of Annexures/documents) CRL.M.A. 16821/2022 in W.P.(CRL) 1936/2022 (Exemption from filing certified copies of Annexures/documents) CRL.M.A. 16829/2022 in W.P.(CRL) 1938/2022(Exemption from filing certified copies of Annexures/documents) 1.0 Exemption allowed subject to just exceptions. Applications are disposed of accordingly.

CRL.M.A. 16740/2022 in W.P.(CRL) 1923/2022 (Exemption from filing typed copies of dim annexures/documents and for leave to place on record documents with inadequate margins) CRL.M.A. 16804/2022 in W.P.(CRL) 1934/2022 (Exemption from filing typed copies of dim annexures/documents and for leave to place on record documents with inadequate margins) CRL.M.A. 16822/2022 in W.P.(CRL) 1936/2022 (Exemption from filing typed copies of dim annexures/documents and for leave to place on record documents with inadequate margins) CRL.M.A. 16830/2022 in W.P.(CRL) 1938/2022 (Exemption from filing typed copies of dim annexures/documents and for leave to place on record documents with inadequate margins) 2.0 Typed copied of dim annexures be filed before the next date of hearing. Applications are disposed of accordingly.

CRL.M.A. 16738/2022 (stay) in W.P.(CRL) 1923/2022 CRL.M.A. 16802/2022 (stay) in W.P.(CRL) 1934/2022 CRL.M.A. 16820/2022 (stay) in W.P.(CRL) 1936/2022 CRL.M.A. 16828/2022 (stay) in W.P.(CRL) 1938/2022 3.0 These are the applications under Section 482 Cr.P.C praying as under:

> "a. stay the further proceeding in CC No. 770 of 2019 titled Serious Fraud Investigation Office vs Bhushan Steel Ltd. & Ors pending before ASJ-03 and Special Judge (Companies Act), South West, New Delhi;

b. Pass any other order as may be deemed fit in the facts and circumstances of the case."

4.0 Learned counsel for the petitioners also submits that the respondent be restrained from taking any coercive action against the petitioners. 5.0 Same is strongly opposed by learned counsel appearing on behalf of SFIO.

6.0 Mr Amit Tiwari, Counsel for SFIO in W.P.(CRL) 1923/2022 (item

16) submits that the petitioner's bail application is already pending and this application is seeking the same relief in the guise of stay. 6.1 Learned counsel on behalf of SFIO appearing in W.P.(CRL) 1934/2022, W.P.(CRL) 1936/2022 and W.P.(CRL) 1938/2022, submit that the petitioners are directors and are persons behind fraud to the tune of Rs. 45,000/ crore.

6.2 It is also submitted that the summoning order was passed on 16.08.2019 and the same has been belatedly challenged only to stall the proceedings.

7.0 Summoning order was passed about three years ago and is challenged now. In view of the same and for the aforesaid reasons, I do not consider it appropriate to grant the relief as claimed vide these applications. 8.0 Applications are disposed of accordingly. W.P.(CRL) 1923/2022 W.P.(CRL) 1934/2022 W.P.(CRL) 1936/2022 W.P.(CRL) 1938/2022 9.0 These are the writ petitions under Article 226 of the Constitution of India read with Section 482 Cr.P.C challenging the part of the summoning order dated 16.08.2019 passed by Learned ASJ-03 and Special Judge (Companies Act) Dwarka Court (SW), New Delhi, summoning the petitioners for commission of offences under Section 448 read with Section 447 of the Companies Act, 2013.

10.0 It is submitted that the petitioner/accused no. 215 Harsh Khanna in W.P.(CRL) 1923/2022, petitioner/accused no. 227 Jagdish Pampanna Kore in W.P.(CRL) 1934/2022, petitioner/accused no. 231 Rakesh K Gupta in W.P.(CRL) 1936/2022 and petitioner/accused no. 239 Puneet Bansal in W.P.(CRL) 1938/2022 were the employees of the accused no. 1 company during the period 2010-14. They could not have been made accused as the allegations were against the company and its directors. 11.0 Issue notice.

12.0 Ms Nidhi Raman, Central Government Standing Counsel (CGSC) who has appeared on advance notice accepts notice on behalf of SFIO. 13.0 Let reply/status report be filed within four weeks with advance copy to the learned counsel for the petitioner.

14.0 List on 15.12.2022.

POONAM A. BAMBA, J AUGUST 26, 2022 g.joshi Click here to check corrigendum, if any